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FIANCE VISA



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FIANCE VISA

The UK Fiance Visa is for engaged partners of British or Irish citizens, persons who are settled in the UK, persons with pre-settled status, persons with a Turkish Businessperson or Turkish Worker visa and persons with refugee status or humanitarian protection who wish to enter the UK and marry within 6 months of their arrival. An application for a UK Fiance Visa must be made from outside the UK.

The UK Fiance Visa does not lead directly to settlement in the UK. However, once you have married in the UK, you will be able to apply from within the UK to extend your stay on the Spouse visa (<https://immigrationbarrister.co.uk/personal-immigration/partners-family-visas/spouse-visa/>) route. The UK Spouse Visa can lead to indefinite leave to remain or settlement in the UK after a period of 5 years.

UK Fiance Visa Requirements

In order to qualify for a UK Fiance Visa, you will need to satisfy UK Visas and Immigration that you meet the following requirements:

- Your partner is British or Irish, is settled in the UK, has been granted pre-settled status, holds a Turkish Businessperson or Turkish Worker visa or has refugee status or humanitarian protection;
- You are both over the age of 18;
- You have met in person;
- Your relationship is genuine and subsisting;
- You intend to marry within six months of your arrival in the UK;
- Any previous relationships have broken down permanently;
- You intend to live together permanently in the UK;
- You will be adequately maintained in the UK without recourse to public funds;
- There is adequate accommodation for you and any dependents;
- You speak and understand English to the required level.

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The exact requirements you will need to satisfy in order to qualify for a UK Fiance Visa may vary depending on your circumstances. You may want to speak to an [immigration lawyer for expert advice](https://www.google.co.uk/search?q=richmond+chambers+immigration+barristers).

To discuss your UK Fiance Visa application with one of our immigration barristers, contact our UK Fiance Visa lawyers on 0203 617 9173 or complete our enquiry form below.

Status of Sponsoring Partner

In order to qualify for a UK Fiance Visa, your partner must either:

- Be a British or Irish citizen in the UK; or
- Have indefinite leave to remain, settled status or permanent residence in the UK; or
- Have pre-settled status under Appendix EU; or
- Have limited leave to remain as a Turkish Businessperson or Turkish Worker under Appendix ECAA; or
- Have refugee leave or humanitarian protection status in the UK.

A British Citizen in the UK includes a British Citizen who is coming to the UK with you as your partner. A person with indefinite leave to remain in the UK includes a person who is being admitted for settlement on the same occasion as you.

Minimum Age for a Fiance Visa

You and your partner must both be over the age of 18 on the date when you submit your Fiance Visa application.

UK Fiance Visa Relationship Requirement

The UK Fiance Visa relationship requirement has various elements to it:

- You and your partner must not be within a prohibited degree of relationship;
- You and your partner must have met in person;
- Your relationship must be genuine and subsisting;
- You must be coming to the UK to enable your marriage to take place in the UK within 6 months of your arrival;
- Any previous relationship must have broken down permanently;
- You and your partner must intend to live together permanently in the UK.

Prohibited Degree of Relationship Requirement



(<https://www.google.co.uk>

In order to qualify for a UK Fiance Visa, you and your fiance must not be within a prohibited degree of relationship as defined in the Marriage Act 1949 and the Marriage (Prohibited Degrees of Relationship) Act 1986.

This means that you and your fiance must not be related in any of the following ways:

- Adoptive child
- Adoptive parent
- Child
- Former adoptive child
- Former adoptive parent
- Grandparent
- Grandchild
- Parent
- Parent's sibling
- Sibling
- Sibling's child

In this list 'sibling' means a brother, sister, half-brother or half-sister.

A proposed marriage between a person and any person in the following list will not qualify for a fiance visa until both parties are aged 21 or over, and provided that the younger party has not at any time before attaining the age of 18 been a child of the family in relation to the other party:

- Child of former civil partner
- Child of former spouse
- Former civil partner of grandparent
- Former civil partner of parent
- Former spouse of grandparent
- Former spouse of parent
- Grandchild of former civil partner
- Grandchild of former spouse

Requirement to Have Met in Person

You and your fiance must have met in person. The requirement to have 'met' means that you must be able to demonstrate a face-to-face meeting which resulted in the making of a mutual acquaintance. Simply coming face-to-face followed by telephone or written contact would not satisfy the requirements for a UK Fiance Visa.

fiance or arrange a home visit. If it has reasonable grounds to doubt that your relationship is genuine or subsisting then your Fiance Visa application will be refused (<https://www.google.co.uk/search?q=richmond+chambers+immigration+barristers>) Our immigration barristers regularly advise Fiance Visa applicants as to the documentary evidence that the Home Office will expect to see in order to be satisfied that their relationship is a real one, based on genuine affection and shared values, and that it is ongoing at the time of the application. We do not rely on templated lists of documents and only ever advise our clients on the documents needed to prove a genuine and subsisting relationship on the basis of their own personal circumstances.

- What is a Genuine and Subsisting Relationship?
(<https://immigrationbarrister.co.uk/what-is-a-genuine-and-subsisting-relationship/>)
- Genuine and Subsisting Relationship Requirement
(<https://immigrationbarrister.co.uk/genuine-and-subsisting-relationship-requirement/>)

Intention to Marry in the UK Within 6 Months

You must be seeking entry to the UK to enable your marriage to take place in the United Kingdom. And, because Fiance Visas are valid for a period of 6 months, you will need to satisfy the Home Office that you intend to get married within 6 months of your arrival in the UK. The Home Office will generally expect to see some evidence of wedding planning and / or arrangements for your wedding day.

Previous Relationship Broken Down Permanently

In order to meet the requirements for a UK Fiance Visa, neither you or your fiance can be married to, or in a civil partnership with, another person at the date of your Fiance Visa application. You must both be free to marry.

If you have previously been married or have entered into a civil partnership, you will need to satisfy the Home Office that you are divorced, your civil partnership has been dissolved or you are widowed.

You will need to provide documentary evidence which complies with the requirements of the Immigration Rules. For example, a divorce in the UK must be evidenced by a decree absolute from a civil court. A divorce outside the UK must be evidenced by a reasonable equivalent to a decree absolute certificate, valid under the law in force in the relevant country.

If you or your fiance have previously been married and this marriage has not been legally dissolved then you may still qualify for an Unmarried Partner Visa (<https://immigrationbarrister.co.uk/personal-immigration/partners-family-visas/unmarried-partner-visa/>). You will need to provide evidence that the new relationship is genuine and subsisting and that the previous relationship has broken down permanently.

Intention to Live Together Permanently in the UK

(n) order to qualify for a Fiance Visa, UK Visas & Immigration will want to be satisfied that you and your fiance intend to live together permanently in the UK. <https://www.google.co.uk>

At the initial Fiance Visa application stage this will require a clear commitment from both of you that you will live together permanently in the UK immediately following the outcome of your Fiance Visa application or as soon as circumstances permit thereafter.

When you apply for further leave to remain or indefinite leave to remain as a spouse, the Home Office will expect any periods of time spent outside the UK to be limited, for good reason and consistent with an intention to live together permanently in the UK. Good reasons could include time spent overseas in connection with work, holidays, training or study.

If you or your spouse-to-be spend the majority of your time overseas, this could cause the Home Office to doubt your intention to live together permanently in the UK. The Home Office will consider the reasons for travel, length of absence and whether you and your spouse travelled and lived together during the time spent outside the UK.

- Residence Requirements for Partners (<https://immigrationbarrister.co.uk/residence-requirements-for-partners/>)

UK Fiance Visa Financial Requirement

In order to demonstrate that you can be adequately maintained in the UK without recourse to public funds, you will need to satisfy the Fiance Visa financial requirement.

The financial requirement for a UK Fiance Visa application states that, unless exempt, you will need to demonstrate that your Fiance (or both of you jointly if you are in the UK with valid leave to remain) has a gross annual income of at least £29,000.

There is no longer a separate child element to the minimum income requirement.

Different considerations will apply if your fiance is in receipt of certain state benefits or entitlements (<https://immigrationbarrister.co.uk/uk-family-visa-financial-requirement-state-benefits/>), when the financial requirement for a UK Fiance Visa is that the sponsor can 'adequately maintain and accommodate' the family member being sponsored to enter or remain in the UK.

You will need to meet the financial requirement when you first apply to enter the UK as a fiance, when you apply to extend your stay as a spouse and when you apply for indefinite leave to remain as a spouse.

The Immigration Rules relating to the Fiance Visa financial requirement are complex and include mandatory documentary evidence requirements. The onus is on applicants to demonstrate that the financial requirement is met. One of the most common reasons for

refusal of a Fiance Visa application is because mandatory financial evidence is not provided.

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How to Satisfy the UK Fiance Visa Financial Requirement

The UK Fiance Visa financial requirement can be satisfied in a variety of different ways, including by relying on:

- Income from **salaried** (https://immigrationbarrister.co.uk/how-to-satisfy-the-appendix-fm-partner-visa-financial-requirement-based-on-employment-income-part-1/?utm_source=newsletter&utm_medium=email&utm_campaign=Knowledge+Centre+Update+6888-4d82-a915-97e0acdfb9f8) or non-salaried employment of your fiance (and/or you if you are in the UK with permission to work);
- Non-employment income (<https://immigrationbarrister.co.uk/partner-visa-financial-requirement-non-employment-income/>), for example, income from property rental or dividends from shares;
- Cash savings (<https://immigrationbarrister.co.uk/family-partner-visa-financial-requirement-cash-savings/>) of your partner and/or yourself, above £16,000, held by your fiance and/or you for at least 6 months and under their / your control;
- State (UK or foreign), occupational or private pension (<https://immigrationbarrister.co.uk/how-do-i-meet-the-financial-requirement-for-a-partner-visa-if-my-sponsor-is-not-working/>) of your fiance and/or yourself;
- Income from self-employment (<https://immigrationbarrister.co.uk/self-employment-and-the-partner-visa-financial-requirement/>), and income as a director or employee of a specified limited company (<https://immigrationbarrister.co.uk/spouse-visa-financial-requirement-company-director/>) in the UK, of your fiance (and/or you if you are in the UK with permission to work).

In some circumstances it is possible to rely on a combination of the above sources of income (<https://immigrationbarrister.co.uk/combining-sources-of-income-to-satisfy-the-spouse-visa-financial-requirement/>) to satisfy the financial requirement.

As mentioned above, different considerations will apply if your fiance is in receipt of certain state benefits or entitlements (<https://immigrationbarrister.co.uk/uk-family-visa-financial-requirement-state-benefits/>).

Also, Fiance Visa applicants relying on cash savings to satisfy the Fiance Visa financial requirement may wish to keep in mind that the level of cash savings required in an entry clearance and extension application is different from the level required when applying for indefinite leave to remain as a spouse (<https://immigrationbarrister.co.uk/requirements-for-indefinite-leave-as-a-spouse/>).

In exceptional circumstances in which refusal of the Fiance Visa application could otherwise breach ECHR Article 8, other credible and reliable sources of income, financial support or funds (<https://immigrationbarrister.co.uk/third-party-support-in-appendix-fm-applications/>) available to the couple may be taken into account.

Our immigration barristers are experts in the Fiance Visa financial requirement rules and regularly assist UK Fiance Visa applicants to navigate the complex evidence requirements. <https://www.google.co.uk/search?q=richmond+chambers+in>

To discuss your UK Fiance Visa application with one of our immigration barristers, contact our UK Fiance Visa lawyers on 0203 617 9173 or complete our enquiry form below.

Fiance Visa Accommodation Requirement

When you apply for entry clearance as a fiance, you will need to provide evidence that there will be adequate accommodation available to you and your fiance, without the need to rely on public funds, in accommodation which you own or occupy exclusively.

You will need to provide evidence as to the basis on which the property is owned or occupied, that you are legally and exclusively entitled to occupy the property and that the property will not be overcrowded or contravene public health regulations.

- The UK Family Visa Accommodation Requirement (<https://immigrationbarrister.co.uk/the-uk-family-visa-accommodation-requirement/>)
- Meeting the Accommodation Requirement: UK Spouse or Fiance Visa (<https://immigrationbarrister.co.uk/meeting-the-accommodation-requirement-uk-spouse-or-fiance-visa/>)

Fiance Visa English Language Requirement

Unless exempt, as part of your Fiance Visa application you will need to satisfy the Home Office that you satisfy an English language requirement.

When applying for entry clearance on the Fiance Visa route you will need to demonstrate competence in the English language to at least CEFR level A1. Once you have successfully switched into the spouse route and you apply for further leave to remain as a spouse (after having held leave as a spouse for 2.5 years), you will need to demonstrate competence in the English language to at least CEFR level A2.

You can meet the Fiance Visa English language requirement by:

- Holding the nationality of a majority English speaking country;
- Passing an approved English language test at or above the required CEFR level, with an approved provider as set out on Approved Secure English Language Tests and Test Centres (<https://www.gov.uk/guidance/prove-your-english-language-abilities-with-a-secure-english-language-test-selt>); or
- Having an academic qualification which is either a Bachelor's or Master's degree or PhD if awarded in the UK; or, if awarded outside the UK, is deemed by Ecctis (formerly UK NARIC) to meet or exceed the recognised standard of a Bachelor's or Master's degree or

PhD in the UK, and Ecctis (formerly UK NARIC) has confirmed that the degree was taught or researched in English at or above the required CEFR level (<https://www.google.co.uk/search?q=richmond+chambers+in>)

In order to be exempt from the English language requirement you will normally have to prove that either:

- You are over the age of 65 at the date of application;
- You have a physical or mental disability which prevents you from meeting the English language requirement;
- There are exceptional circumstances which mean that you cannot satisfy the English language requirement before entering the UK.

If you are not able to demonstrate that you meet the English language requirement (or are exempt), then your Fiance Visa application will be refused.

- Family & Partner Visa English Language Requirement (<https://immigrationbarrister.co.uk/family-partner-visa-english-language-requirement/>)

UK Fiance Visa Supporting Documents Checklists

The most common reason for a Fiance Visa application to be refused is because the applicant fails to include sufficient documentary evidence in support of their application.

The Immigration Rules contain strict requirements in terms of the documents that must be submitted in support of a UK Fiance Visa application. Every case is different and the required supporting documents for a Fiance Visa application will vary from case to case.

Applicants should be very careful when using pre-prepared document checklists for Fiance Visa applications. Advice from an immigration lawyer will ensure that the documents listed are appropriate for individual circumstances.

At the same time, if a required document is not provided, is in the wrong format or does not contain all mandatory information then the application for a Fiance Visa may be refused. Appeals can take many months to be determined and the outcome may be uncertain. A fresh application will involve further cost and additional delay.

Our immigration barristers provide expert advice to Fiance Visa applicants in relation to the documents required for a successful Fiance Visa application and also check supporting documents for compliance with the Immigration Rules.

UK Fiance Visa Application Fee

The Home Office application fee (<https://www.gov.uk/government/publications/visa-regulations-revised-table/home-office-immigration-and-nationality-fees-10-april-2024>) for a UK Fiance Visa application submitted outside the UK is currently £1,846. The Home

Office application fee to switch into the spouse category from within the UK or extend stay as a spouse is currently £1,048. Additional fees will apply if you use the Priority Service (<https://immigrationbarrister.co.uk>) (<https://www.google.co.uk/search?q=richmond+chambers+in>

UK Fiance Visa Processing & Decision Waiting Times

The current Home Office processing time for a Fiance Visa application submitted outside the UK is 24 weeks. If you apply via the Priority Service then you will usually receive a decision within 30 working days. There is no Super Priority Service for out-of-country applications.

- Can I Visit the UK While My Partner Visa Is Being Processed?
(<https://immigrationbarrister.co.uk/can-i-visit-the-uk-while-my-partner-visa-is-being-processed/>)

Applications for Fiance Visas can only be made from outside the UK. It is not possible to switch into the Fiance Visa category from within the UK.

Duration of a UK Fiance Visa

If your application for a UK Fiance Visa is successful, your visa will be valid for 6 months initially.

After your wedding has taken place, you will then be eligible to apply to switch into the Spouse category without having to leave the UK.

If your application for further leave to remain in the UK as a Spouse is successful then you will be granted further leave to remain for a period of 30 months. You will need to extend your Spouse leave for a further 30 months before it expires.

After spending 5 years in the UK as the Spouse of a British citizen or settled person, you will be eligible to apply for indefinite leave to remain.

Working in the UK on a Fiance Visa

Fiance Visa holders are not permitted to work in the UK.

UK Fiance Visa Frequently Asked Questions

How Can I Get Married in the UK?

If you wish to travel to the UK to get married then there are two main immigration routes available: the Marriage Visit visa and the Fiance visa.

The Marriage Visit visa (<https://immigrationbarrister.co.uk/personal-immigration/short-stay-visit-visas/marriage-or-civil-partnership-visit-visa/>) is designed for individuals who wish to visit the UK to marry, or give notice of a marriage, in the UK. <https://www.google.co.uk/search?q=richmond+chambers+in>

The Fiance visa is for engaged partners of British citizens, persons with indefinite leave to remain in the UK, refugee leave or humanitarian protection or limited leave to remain under Appendix EU or Appendix ECAA, who wish to enter the UK and marry within 6 months of their arrival.

- How to Get Married in the UK: Choosing the Right Visa for Marriage (<https://immigrationbarrister.co.uk/how-to-get-married-in-the-uk-choosing-the-right-visa-for-marriage/>)
- What Visa do I Need To Get Married in the UK? (<https://immigrationbarrister.co.uk/what-visa-do-i-need-to-get-married-in-the-uk/>)

Where Can I Apply for A UK Fiance Visa?

An application for a UK Fiance Visa must be made from outside the UK. You should apply in the country where you are resident (otherwise than as a visitor). You do not need to be a citizen of the country.

How Do I Apply for a UK Fiance Visa?

Fiance Visa applications are made using an online application form.

Before you apply for a UK Fiance Visa you should check the correct application form for your individual circumstances with an immigration lawyer.

You should prepare your supporting documents while you are preparing your Fiance Visa application form, as there are some specific document requirements which necessitate that your documents are dated before the date that you submit the online application form.

The current system allows individuals to upload scans of their Fiance Visa supporting documents for the Home Office to review. However, you should check the individual procedure for the country in which you intend to apply at the time when you are applying, as the Home Office changes this system from time to time.

What if I Do Not Get Married Within 6 Months?

If your marriage does not take place before your Fiance Visa expires, you can apply to extend your stay for a further 6 months in order to allow the ceremony to take place, provided that there is a good reason why it has not done so to date and there is evidence that a ceremony will take place within the next 6 months.

When Can I Apply for a British Passport?

When you first enter the Fiance Visa category you will be granted permission to stay for a period of 6 months. Once you have married, you will be able to apply to switch into the Spouse Visa category. If this application is successful you will be granted further leave for a period of two and a half years. You will then have to make an extension application before the expiry of this leave and will be granted a further two and a half years.

Most people in the Spouse Visa category are on a five year route to settlement. This means that after two grants of 30 months, they are eligible for Indefinite Leave to Remain.

Some people are on a ten year route to settlement, and they will need to have four grants of leave. If, after you enter the UK you switch from the five year route to the ten year route, then you can count both grants of leave towards the period you need for the ten year route.

Once you have obtained Indefinite Leave to Remain in the UK, if you are married to a British national you can immediately apply to Naturalise as a British Citizen

(<https://immigrationbarrister.co.uk/personal-immigration/british-citizenship/british-citizenship-by-naturalisation/>). If you are not married to a British national, you will need to wait a period of 12 months before you can apply.

What if My Fiance Visa Application Is Refused?

If your application for a UK Fiance Visa is refused then you should have a right of appeal (<https://immigrationbarrister.co.uk/personal-immigration/immigration-appeals/first-tier-tribunal-immigration-appeal/>). This is because a fiance application is automatically deemed a human rights claim.

The appeal will be heard at the First-tier Tribunal (Immigration and Asylum Chamber) (<https://immigrationbarrister.co.uk/personal-immigration/immigration-appeals/first-tier-tribunal-immigration-appeal/>) in the UK.

If you are in the UK, you and your fiance will be able to attend and give evidence before the Judge.

If you are outside of the UK, your fiance will be able to attend, but you can write a statement and provide evidence for the Tribunal to consider. Arrangements may be made for you to give evidence remotely if this is appropriate in your case.

Immigration appeal proceedings can take many months to be determined and the outcome may be uncertain. Again, we recommend seeking legal advice and representation from a specialist immigration lawyer before appealing against a decision to refuse a Fiance Visa application.

What if I Cannot Satisfy the Requirements for a UK Fiance Visa?

If you are not able to satisfy the requirements for a UK Fiance Visa you may still be able to enter or remain in the UK on human rights grounds if, for example:

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- You have a child in the UK who is a British or Irish citizen;
- You have a child in the UK who has lived in the UK for at least 7 years and it would be unreasonable for them to leave the UK;
- There would be very significant difficulties for you and your fiancée that could not be overcome if you lived together as a couple outside the UK;
- It would otherwise breach your human rights to prevent you from coming to the UK or to make you leave the UK.
- **Exceptional Circumstances in Appendix FM Family Visa Applications**
(<https://immigrationbarrister.co.uk/exceptional-circumstances-in-appendix-fm-family-visa-applications/>)
- **Exceptions to Appendix FM Partner & Parent Visa Requirements**
(<https://immigrationbarrister.co.uk/exceptions-to-appendix-fm-partner-parent-visa-requirements/>)

How Our Immigration Barristers Can Help

Our immigration barristers regularly assist foreign national fiancées to relocate to, and settle in, the UK with their partners. We have assisted hundreds of foreign national fiancées to prepare and submit successful UK Fiance Visa applications.

Whether you require expert advice on the requirements of the Immigration Rules for a Fiance Visa, an independent assessment of your prospects of qualifying for a Fiance Visa or professional assistance with preparing a Fiance Visa application, our immigration barristers can help.

The financial requirement rules are particularly complex and include mandatory requirements in terms of the documentary evidence that must be provided to UK Visas and Immigration in order to demonstrate access to the relevant funds. Our immigration barristers specialise in assisting applicants with complex financial circumstances to secure successful outcomes in their Fiance Visa applications.

We pride ourselves on being approachable and proactive in understanding and meeting our clients' needs. We are a highly driven team of immigration barristers, dedicated to providing clear and reliable immigration advice to individuals applying for a UK Fiance Visa as part of a professional and friendly service.

WE CAN ALSO ASSIST WITH

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Immigration property inspection reports for Fiance visa applications

Applications for Spouse visas

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WHAT CAN WE HELP YOU WITH?

To discuss your UK Fiance Visa application with one of our immigration barristers, contact our Fiance visa UK lawyers on 0203 617 9173 or complete our enquiry form.

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(<https://immigrationbarrister.co.uk/what-visa-do-i-need-to-get-married-in-the-uk/>)

By Stefania Patuto - Immigration Barrister

12 Sep 2025

If you currently reside outside of the UK and wish to marry or enter into a civil partnership in the UK, there are two main routes available: a Marriage or Civil Partner Visit visa or a Fiancé visa.

(<https://immigrationbarrister.co.uk/what-visa-do-i-need-to-get-married-in-the-uk/>)

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Making a UK Spouse Visa Application: 10 FAQs

[\(https://immigrationbarrister.co.uk/making-a-uk-spouse-visa-application-10-faqs/\)](https://immigrationbarrister.co.uk/making-a-uk-spouse-visa-application-10-faqs/)

By Gillian McCall - Barrister Partner

05 Sep 2025

The UK Spouse Visa route allows married partners of British citizens and those settled in the UK to live together in the UK. It is also open...

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Satisfying the Appendix FM Partner Visa Financial Requirement Based on Employment Income (Part 2)

[\(https://immigrationbarrister.co.uk/satisfying-the-appendix-fm-partner-visa-financial-requirement-based-on-employment-income-part-2/\)](https://immigrationbarrister.co.uk/satisfying-the-appendix-fm-partner-visa-financial-requirement-based-on-employment-income-part-2/)

By Anna Bregstein - Immigration Barrister

08 Jul 2025

In Part 1 of this guide to the Appendix FM Partner and Family Visa financial requirement, we examined the evidential standards for applicants relying on Category A income.

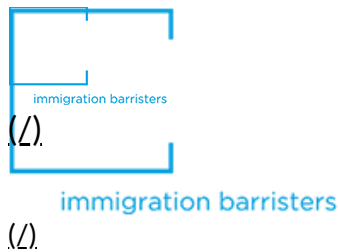
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